Terms and Conditions

PLEASE READ THIS AGREEMENT CAREFULLY BEFORE PURCHASING AND USING SOFTWARE OR SERVICES FROM LEARNDASH. BY PURCHASING OR USING LEARNDASH'S SOFTWARE OR SERVICES, YOU SIGNIFY YOUR ASSENT TO, AND ACCEPTANCE OF, THESE TERMS AND CONDITIONS AND ACKNOWLEDGE YOU HAVE RE D UNDERSTAND THESE TERMS AND CONDITIONS. IF YOU ARE AN INDIVIDUAL ACTING ON BEHALF OF AN ENTITY, YOU REPRESENT THAT YOU HAVE T TERMS AND CONDITIONS ON BEHALF OF THAT ENTITY. IF YOU DO NOT ACCEPT THESE TERMS AND CONDITIONS, THEN YOU MUST NO SOFTWARE OR SERVICES.

These Terms and Conditions ("Terms") are between you (individual or entity) and Skyward North LLC DBA LearnDash ("LearnDash") and addresses unique c LearnDash's products (including software), open source software, and business model.

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1. Privacy

LearnDash values your privacy. As such, LearnDash agrees to maintain a privacy policy that will identify the types information collected and stored by LearnD access to the stored information, and who LearnDash may share the information with. See LearnDash's Privacy Policy for full details.

2. License

In order to use the software provided in connection with these Terms, and to receive services from LearnDash, you are required to purchase an annual license ("Site License"). Each Site License entitles you to install the software on one (1), up to 10, or up to 25 domains and receive the other benefits listed here based on the package you purchased. Installing LearnDash on a sub-domain or in a sub-folder counts as a unique site. Installing LearnDash on a WordPress multi-site website where members of the network receive their own installation of LearnDash is not prohibited. However, LearnDash's support staff will only offer support to the primary Site License holder or where the domain owner (network manager or network member) has purchased their own Site License. Upon receipt of your payment, LearnDash will issue you a license key and login credentials that will enable you to receive updates and support. These will be delivered in accordance with Section 3 of these Terms. An active Site License is required to continue to receive updates and support.

If your Site License expires or is cancelled, you must purchase a new Site License at the then-current price to regain access to support and updates. Any cancellation or expiration of the Site License will not impact your ability to use the then-current release and version of the software, nor will LearnDash remove any features or functionality of the software with exception of access to the free LearnDash add-ons. An expired Site License means you will not receive support or updates to the software, and LearnDash cannot guarantee the software will remain compatible with future versions of WordPress. Following expiration or cancellation of your Site License, LearnDash will not have any ongoing obligations to assist you with the correction or resolution of any errors, defects, or failure of the software to work.

Unless explicitly stated otherwise, any updates that add new features or functionality to LearnDash's software, including new releases, shall be subject to these Terms. You also understand and acknowledge that LearnDash may modify, terminate, suspend, or otherwise adjust any and all functions, features, options, utilities, tools, or other aspects of the software and services at any time without prior notice to you. You understand and agree that the software is provided "AS-IS" and that LearnDash assumes no responsibility for, among other things, availability, timeliness, deletion, failure to store any user data or communications, personalization settings, or changes to the services or software that LearnDash may make from time to time. You are responsible for obtaining access to the services, including updates and support, and that access may involve third-party fees (such as Internet service provider charges). In addition, you must provide and are responsible for all equipment necessary to use the software and to receive updates and support service.

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3. Automatic Renewal, Cancellation, and Refund Policy

Unless otherwise previously agreed upon, all Site Licenses renew automatically, provided that you may cancel your Site License at any time by contacting LearnDash's support. Unless you cancel your Site License within the first thirty (30) days of receiving it, you will not entitled to receive a refund of any fees paid by you to LearnDash. Automatic renewal payments are eligible for refund within the first thirty (30) days of the renewal transaction. Addons and product upgrades are not applicable for refunds under any circumstance. By cancelling or accepting a refund of the fees you paid to LearnDash, you acknowledge and agree that your Site License is terminated and that LearnDash has no further obligations to you with respect to these Terms, or the subject matter hereunder.

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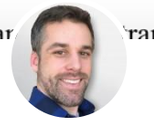
- Violating local, state, national, or international law, or breaching any of your contractual obligations or fiduciary duties.
- Sharing any passwords, letting anyone access your information with LearnDash, or doing anything that might put your information at risk.
- Attempting to access any other user's information.
- Reproducing, transferring, selling, reselling, or otherwise misusing any software, updates, or support services, unless specifically authorized to do so.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- Accessing, tampering with, or using non-public areas of LearnDash's systems, unless specifically authorized to do so.
- Breaking or circumventing LearnDash's authentication or security measures, or otherwise testing the vulnerability of LearnDash's systems or networks, unless specifically authorized to do so.
- Trying to reverse engineer any portion of the product or services.
- Trying to interfere with any user, host, or network, for example by sending a virus, overloading, spamming, or mail-bombing.
- Using the products or services to distribute malware.
- Impersonating or misrepresenting your affiliation with any person or entity.
- Encouraging or helping anyone do any of the things on this list.
- Using the products or support services to: share illegal content or promote illegal activities; share content that is defamatory, obscene, pornographic, vulgar, offensive, discriminatory, hateful, racist, harassing, or harmful; or that promotes discrimination, bigotry, racism, hatred, harassment, or harm against any individual or group; make threats or organize acts of real-world violence; harass others; or to violate intellectual property, privacy, laws, regulations, or any other third party's rights.

5. Delivery

After LearnDash has successfully received your payment, the product(s) will become available for download on the LearnDash support site and you will be automatically redirected to the product(s). LearnDash will also send an email to you with your login credentials for the LearnDash support portal located here. To receive support services, you must log in to the LearnDash support portal. After you successfully log in, you will be able to receive support and access to the downloads for the duration of your Site License. If you do not receive an email with your LearnDash support portal login credentials after one (1) hour, please contact LearnDash.

You are and will be responsible for maintaining the confidentiality of your login credentials, for all activities conducted on and with the services that make use of your login credentials, and for charges or fees incurred by the use of such credentials, if any, including any use you may subsequently contend was not unauthorized by you. It is your responsibility to ensure that you exit or log-off from the LearnDash support portal at the end of each session of use. You shall notify LearnDash immediately of any unauthorized use of your login credentials or any other breach of security that is known or suspected by you.

6. One-Click Updates

For the duration of your Site License, LearnDash will make one-click updates available to you. One-click updates may include bug fixes, patches, enhanced functions, missing plugins, and new features. The one-click update feature can be disabled by not entering a valid Site License into the software. This one-click update feature will: (a) connect to LearnDash or service provider computer systems over the Internet, (b) use the Internet protocols to recover standard computer information in order to determine whether an update is required, and (c) prompt you to download and/or install the current update. By installing the software initially, you consent to the transmission of standard computer information and the automatic downloading and installation of updates. It is your responsibility to ensure that you are in compliance with any information security policies or procedures that you may have as it relates to the updates. If the update fails, it is your responsibility to notify LearnDash via the LearnDash support portal, and LearnDash will provide commercially reasonable assistance in determining if a reasonable work-around exists to provide you with the update.

7. Support Policy

A current Site License gives you access to LearnDash's help desk, and standard documentation. Support is provided via these channels only. LearnDash does n
chat, or in-person support services. Support is available from 7:00 AM to 4:00 PM Eastern Standard Time, Monday through Friday, excluding federal holidays
of these hours will be addressed during the following business day. LearnDash's support services are only intended for Site License holders and for use with Le
support any third party components, software, systems, or plugins. Specifically, LearnDash does not offer support for WordPress or other WordPress products t
does not offer customizations to its products or customized development services for new or modified features relating to LearnDash's products. LearnDash co
most current version of the software. LearnDash does not provide customer support for legacy (old) versions.

LearnDash commits to using commercially reasonable efforts to keep its products up-to-date with the latest version of WordPress. As such, all LearnDash prod
latest available version of WordPress. However, LearnDash cannot, and does not, guarantee that its products will work with older versions of WordPress.

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LearnDash commits to using commercially reasonable efforts to keep its products compatible with most modern, popular web browsers including Firefox, Safari, Chrome, and Internet Explorer. While LearnDash will use commercially reasonable efforts to give a near-identical experience across browsers, certain features and functionality may not be identical, or operate in a similar manner due to the lack of web standards support (relating to HTML & CSS) in some browsers. If a browser does not support certain web standards, LearnDash will attempt to provide a generic workaround for that browser, which may degrade a specific function or feature gradually. To the extent possible, LearnDash will attempt to ensure that the workaround does not impact any user's experience negatively.

LearnDash cannot, and does not, guarantee compatibility with all hosting or server configurations, nor does LearnDash provide support for hosting or server related issues.

To minimize the chance of a conflict, you should choose a hosting provider that adheres to the WordPress requirements.

8. Ownership

LearnDash and/or its licensors own and shall retain all rights, titles, and interests, including all intellectual property rights, in and to the products, services, documentation, imagery, and content (including at LearnDash.com) provided under these Terms, and all elements thereof. Except for the express licenses granted to you herein, you neither have, nor acquire, any rights, titles, or interests in or to the foregoing, or any element thereof. In addition, you acknowledge and agree that you will not bundle any LearnDash product with any other products (i.e. WordPress themes) to be distributed in online marketplaces.

9. Publicity

You shall not use or exploit any LearnDash names, logos, trademarks, service marks, or other indicia or trade origin, or refer to LearnDash directly or indirectly in any marketing materials, advertising, customer lists, media release, public announcement, or public disclosure relating to the products or services, or these Terms or its subject matter, without obtaining LearnDash's prior express written consent prior to each use.

10. Notices

LearnDash may send you email notifications from time to time related to these Terms and the subject matter hereunder. These emails may include notifications of licensing changes, changes to these Terms, Site License expiration and renewal notices, promotions, and other emails related to your purchases hereunder. Unless LearnDash receives an automated response that the email is undeliverable, these notices shall be effective upon the date sent to you.

11. Changes

LearnDash reserves the right, at any time, to modify or discontinue, temporarily or permanently, a Site License with or without notice. In addition, these Terms and any prices are subject to change at any time. LearnDash will attempt to give you fourteen (14) days' prior notice of any material changes that impact your account, when possible.

In some cases, where a particular product has become extremely outdated or LearnDash decides, in its sole discretion, that there is no feasible workaround avai
that particular product and, instead, work to produce an entirely new version that takes advantage of the latest improvements in the most recent version of Word

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12. Warranty

Both you and LearnDash each hereby warrant to the other that: (a) it has the authority to enter into these Terms, to grant the rights granted by it under these Ter
Terms; and (b) it will comply with all applicable laws and regulations in effect during the term of the Site License as they apply to such party's rights and oblig

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will be uninterrupted or error-free or that any security mechanisms implemented by the products will not have inherent limitations. LearnDash's sole liability, a
this warranty shall be, in LearnDash's sole discretion, to use commercially reasonable efforts to provide you with an error-correction or workaround which corrects the reported non-conformity, or if

LearnDash determines such remedies to be impracticable within a reasonable period of time, to refund a pro-rata amount of the fee paid for the applicable product and term. LearnDash shall have no obligation with respect to a warranty claim, unless: (i) you notified LearnDash in writing of such a claim within thirty (30) days of discovering the non-conformity; (ii) described the non-conformity in the product sufficiently for LearnDash to replicate the non-conformity; and (iii) LearnDash was able to replicate the non-conformity.

You hereby represent and warrant, under your own responsibility that no Personal Data subject to General Data Protection Regulation (EU) 2016/679 ("GDPR") is, or will be, processed by LearnDash as a Processor on your behalf as part of the product, services, or these Terms. You shall communicate to LearnDash in writing, without undue delay, any anticipated change affecting this representation and warranty. If you communicate any anticipated change affecting this representation and warranty to LearnDash, you and LearnDash will determine, in good faith, if a data processing agreement is necessary. As good faith, you agree that you will: (a) specifically identify the sections of GDPR implicated by the products or services, (b) reasonably articulate to LearnDash the Personal Data you will be providing to LearnDash for Processing; and (c) provide LearnDash with all reasonably requested information and access. If the parties mutually agree that GDPR is applicable, you agree to enter into LearnDash's standard data processing agreement, without modification, which shall amend these Terms, as is reasonably required: (a) to reflect each party's obligations and risks under GDPR, and (b) for LearnDash to provide the products and services in a manner that allows you and LearnDash to comply with the respective obligations under GDPR before the change affecting this representation and warranty. You agree to assist LearnDash in any request or procedure by a national data protection supervisory authority, or in any lawsuit, relating to the processing of any Personal Data covered by this representation and warranty. Furthermore, you shall indemnify and hold LearnDash harmless for any cost, charge, damages, expenses, or loss (including reasonable attorneys' fees) arising from your noncompliance with this section. Any undefined terms used herein shall have the meaning set forth in GDPR.

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13. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, LEARNDASH SHALL NOT BE LIABLE FOR ANY INDIRECT, EXEMPLARY, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR ANY LOSS OF PROFITS OR REVENUES, WHETHER INCURRED DIRECTLY OR INDIRECTLY, OR ANY LOSS OF DATA, USE, GOODWILL, OR OTHER INTANGIBLE LOSSES, RESULTING FROM: (A) YOUR ACCESS TO OR USE OF OR INABILITY TO ACCESS OR USE THE PRODUCTS OR SERVICES; (B) ANY PRODUCT, SOLUTIONS, MATERIALS, OR CONTENT PROVIDED BY ANY THIRD PARTY; OR (C) UNAUTHORIZED ACCESS, USE, OR ALTERATION OF YOUR DATA, CONTENT, OR INFO ON. IN NO EVENT SHALL LEARNDASH'S AGGREGATE LIABILITY TO YOU FOR ALL CLAIMS RELATED TO THE PRODUCTS AND SERVICES EXCEED T TOTAL AMOUNT OF FEES RECEIVED BY LEARNDASH FROM YOU FOR THE USE OF THE PRODUCTS SERVICES DURING THE TWELVE (12) THE EVENT GIVING RISE TO THE LIABILITY.

YOU ACKNOWLEDGE AND AGREE THAT THE DISCLAIMERS AND THE LIMITATIONS OF LIABILITY SET FORTH IN THESE TERMS REFLEC ALLOCATION OF RISK BETWEEN YOU AND LEARNDASH, AND THAT THESE LIMITATIONS ARE AN ESSENTIAL BASIS TO LEARNDASH'S SERVICES AVAILABLE TO YOU ON AN ECONOMICALLY FEASIBLE BASIS. YOU AGREE THAT ANY CAUSE OF ACTION RELATED TO THE P COMMENCE WITHIN ONE (1) YEAR AFTER THE CAUSE OF ACTION ACCRUES; OTHERWISE, SUCH CAUSE OF ACTION IS PERMANENTLY

14. Governing Law & Jurisdiction

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In order to ensure consistency in the interpretation and enforcement of these Terms, these Terms will be governed exclusively by Michigan law and controlling United States federal law, without regard to the choice or conflicts of law provisions of any jurisdiction.

You expressly agree that any litigation arising between you and LearnDash related, in any way, to the products, services, and/or these Terms, and/or any and all disputes, actions, claims, or causes of action related thereto, shall be initiated and maintained only in the U.S. District Court for the Eastern District of Michigan, Southern Division, and/or the Circuit Court of the County of Washtenaw, Michigan. You expressly consent and irrevocably submit to the exclusive personal jurisdiction and venue of such courts. Notwithstanding the foregoing, LearnDash may seek and obtain injunctive relief in any jurisdiction.

15. Miscellaneous

If it turns out that a particular provision of these Terms is not enforceable or invalid as determined by a court of competent jurisdiction, this will not affect any other terms and such provision shall be modified to the extent necessary to be valid and enforceable. If you do not comply with these Terms, and LearnDash does not take immediate action, this does not indicate that LearnDash relinquishes any rights that LearnDash may have (such as taking action in the future). Any waiver of rights by LearnDash must be acknowledged and agreed to by you and LearnDash in writing.

The relationship between you and LearnDash is that of independent contractor. No joint venture, partnership, employment, or agency relationship exists between you and LearnDash as a result of these Terms, or your access to, and use of, the Services. Neither party has the authority to create any obligations for the other, or to bind the other to any representation, statement, or document. Any person or entity who is not a party to these Terms has no right to benefit under or to enforce any of these Terms.

Subject to these Terms, all provisions of these Terms relating to ownership, limitations of liability, and other provisions which by their nature survive termination of these Terms shall survive termination of these Terms.

These Terms are personal to you. You may not assign, transfer, or sublicense, in whole or part, any of your rights and/or obligations under these Terms without LearnDash's prior written consent. Any attempted assignment without such written consent shall be void. Notwithstanding the foregoing, LearnDash may assign this Agreement without your consent, in whole, but not in part. Subject to the provisions of this Section, these Terms will be binding upon and will inure to the benefit of the parties and their respective successors and assigns.

These Terms and the Privacy Policy, and any other terms provided by LearnDash on or through the product or services constitute the entire agreement between you and LearnDash relating to the products and services, and supersedes any and all prior and contemporaneous communications and/or agreements between you and LearnDash relating to access and use of the products and services.

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Let's Begin! or Any Questions?

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